AmeriSchools Academy

Parent and Student Handbook

Dee Kidd
Chief Executive Officer

Revised June 2025

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Equal Educational Opportunity

Federal and state laws prohibit discrimination on the basis of race, color, national origin, gender, religion, or disability. Amerischools Academy provides a nondiscriminatory learning and work environment ensuring that all students and staff are free from unlawful discrimination. A lack of English language skills will not be a barrier to admission and participation in the education programs of the school. This commitment extends to all school programs and school sponsored events. A full copy of the grievance procedure is available from the Principal.

In the event a student experiences discrimination, the student should report the incident to the school Principal as soon as possible. The inability of a student to speak English should not prevent the student from reporting a violation. Every reasonable measure to interpret a non-English speaker's concerns will be taken.

The following individual has been designated to handle inquiries regarding the non-discrimination policies:

Dee Kidd
CEO
1150 N. Country Club
Tucson AZ 85716
1-520-296-1100
dkidd@amerischools.org

Procedures for Filing Complaints

Any person who believes he/she has been the subject of or is a witness to discrimination or harassment shall immediately notify any teacher, office personnel, or the school Principal. Complaints that cannot be reported immediately must be reported within thirty (30) calendar days. The school employee receiving the report or complaint, or who personally witness discrimination or harassment, shall immediately inform the school Principal of the report or complaint and complete a Statement of Facts form.

Procedures for Investigation of the Report/Complaint

The school Principal will investigate the incident personally or designate another school employee to conduct the investigation at the Principal's discretion. All witnesses and parties to the Complaint will be asked to complete a Statement of Facts form, or if a Statement of Facts form is not available, to set forth in another written form all information relevant to the complaint, including a description of the conduct alleged (i.e., specific words, statements, or actions), names of perpetrator and victim, places, times, and other witnesses. Accommodations to assist with completing the Statement of Facts form or other written statement shall be provided when needed. The Principal shall contact an outside agency (i.e., Department of Child Safety or law enforcement) as required by statute or when otherwise deemed appropriate by the Principal.

Investigative Findings

In all cases, regardless of whether a violation of School policy is found, or a complainant no longer wishes to pursue his/her complaint, the investigation shall conclude with a written investigation report. The report shall include findings, conclusions and any possible recommendations, including any discipline referral resulting from the alleged conduct, to be prepared by the individual who conducts the investigation. The report shall be drafted no later than 10 school days after the investigation is closed. If additional time is needed, the investigator must notify the principal and the parents of the students involved.

Admission Policy

Admission is not limited based upon ethnicity, national origin, gender, income level, disabling condition, proficiency in the English language, or athletic ability. There is no tuition or fees charged for attending AmeriSchools Academy.

AmeriSchools Academy will admit all eligible pupils who submit a timely enrollment application. AmeriSchools Academy shall give enrollment preference to pupils returning to the charter school in the second or any subsequent year of its operation, to siblings of pupils already enrolled in the charter school, to children of employees and Governing Board members of the school, and to children who attended another charter school or are the siblings of that pupil if the charter school previously attended by the pupil has the identical charter holder, board and governing membership as the enrolling charter school, or is managed by the same educational management organization, charter management organization or educational service provider as determined by the charter authorizer.

If, by the application deadline, the number of applicants exceeds the capacity of a program, class, grade level, or building, all applicants for that program, class, grade level or building will be selected for the available slots through an equitable selection process except that preference shall be given to siblings of a pupil selected through an equitable selection process such as a lottery. After the application deadline, pupils for any remaining slots or for a waiting list will be accepted in chronological order. (A.R.S. § 15-184(A)-(D)).

AmeriSchools Academy may refuse to admit any pupil who has been expelled from another educational institution or who is in the process of being expelled from another educational institution. (A.R.S. § 15-184(E)).

Registration and Enrollment

AmeriSchools Academy utilizes SchoolMint to complete student enrollment applications. Online enrollment must be completed for each child enrolling in the School. All required documents will be uploaded directly into SchoolMint, and any supplemental or additional documentation not required on the application should be provided directly to the school's office upon enrollment.

Transfers and Withdrawals

If you plan to move or withdraw for any reason, please let the office manager know at least three days in advance. This time will allow the office manager to prepare transfer materials that will help the student transition smoothly into his or her new school. When a student withdraws from school, the parent/guardian needs to come to the office and sign a withdrawal form. Parents/Guardians may also request that the student's records be sent to the new school at this time.

Faculty

Our teachers are highly qualified and committed to providing quality educational opportunities for students while promoting a professional learning community. Parents/Guardians are permitted to review staff qualifications. Please contact the office manager to arrange an opportunity to review a staff member's certification, educational background, and/or professional experience.

Attendance Expectations

Arizona Revised Statutes (A.R.S.) require that the parent or legal guardian of the student shall "enroll the child in and ensure that the child attends a public, private or charter school for the full time of the school." AmeriSchools Academy aligns with these requirements.

Regular attendance and punctual arrival at school are two behaviors that dramatically impact student achievement. Absences and tardiness disrupt schedules, require readjustment to the class routine, and interfere with learning. It is very difficult for students to make up work that has been done in class. There is often direct instruction by the teacher, labs, and other activities that cannot be duplicated; therefore, we urge parents/guardians to support their child's education and us by not allowing their child to be out of school unless absolutely necessary.

Missing class affects academic achievement; repeated absences may be reflected in the student's grades. If a student is repeatedly absent, the principal, dean of students, teacher(s), student, and/or parent/guardian will meet to address the issue.

Excused and Unexcused Absences

Pursuant to A.R.S. §15-901(A)(1), "…excused absences shall be identified by the Department of Education...". The Department of Education defines an excused absence as being an absence due to illness, doctors appointment, bereavement, family emergencies, due to student's mental or behavioral health, and out-of-school suspensions. Absences shall not exceed 10% of the instructional days scheduled for the school year. AmeriSchools Academy also permits a student to be excused for religious purposes, not to exceed one school week.

In order for absences relating to illness, doctor appointment, bereavement, or family emergencies or mental or behavioral health to be coded as an excused absence, the school must be notified of the absence prior to the absence or when the absence occurs by the parent or legal guardian who has custody of the student.

If an absence occurs relating to any other term or condition that is not specifically designated herein, the absence shall be counted as unexcused. Students absent for ten (10) consecutive school days, except for excused absences identified herein, may be withdrawn from the school, pursuant to A.R.S. §15-901 (A)(1). Additionally, if a student accumulates **ten (10) or more absences** during the entire year, the parent/guardian may be required to meet with the administration to create an attendance plan.

Promoting and fostering consistent student attendance requires commitment from teachers, families, and students. This policy reflects our obligation to developing excellent daily work habits in our students. No single individual or group can successfully accomplish this task. AmeriSchools Academy staff will do all we can to encourage and support student attendance. This ranges from creating a pleasant and safe physical environment to providing meaningful learning experiences and opportunities in every class. In addition, our staff will:

- **Keep accurate attendance records of excused and unexcused absences.**
- **Require accountability for students to complete work they missed while absent including homework, projects, quizzes, tests, and other assignments.**

Chronic Health Problems

Students with a chronic health problem are defined as those (1) students who are not homebound, but who are unable to attend regular classes for intermittent periods of one or more consecutive days because of illness, disease, pregnancy complications or accident as certified by a health professional or registered nurse practitioner; (2) students who suffer from a condition requiring management on a long-term basis, as certified by a licensed health professional; or students who have an infant with severe health problems, as certified by a licensed health professional. Students on an extended absence related to chronic health will be provided schoolwork as appropriate, and will be excused from attendance when notice is provided to the School office. All exceptions must be certified by an appropriate health professional and will be reviewed on an individual basis. (A.R.S. § 15-346). Please ask the school office for the appropriate forms if your child's attendance is affected by a chronic health problem along with providing the office with any applicable documentation related to the illness.

Truancy and Truancy Protocol

A child between the ages of six (6) and sixteen (16) failing to attend school during the hours school is in session is truant unless excused pursuant to State law. Truant means an unexcused absence for at least one (1) class period during the day. This includes absence from any class, study hall, or activity during the school day for which the student is scheduled. Unexcused absence for at least five (5) school days within a school year constitutes habitual truancy and may result in a truancy citation being issued to the student, parent or both.

Tardy Policy

Lateness directly impacts those who are waiting for the student's arrival but mainly hurts the student's opportunity for learning and growth. Tardiness to school and to class whether, the result of oversleeping, car problems, traffic, babysitting, or socializing, is unacceptable.

A student is considered tardy if he/she arrives after the start of the school day. If for any reason a student is tardy to school, he/she must report to the school office before going to class in order to check in with the office manager. Students will only receive an excused tardy if the school office is notified of the tardy ahead of time and if the reason is legitimate, such as an unavoidable event.

Repetitive tardiness can become a concern and detrimentally impacting students on their academic success. Accumulation of tardies will be addressed, and may result in a loss of credit for assignments or other consequence as determined by the school administration. Excessive tardiness may also result in parent meetings or referrals to truancy.

School Day Schedule

Each campus has a slightly varied schedule for start and end times during the week based on grade level. Specifics by each campus and grade may be found on each school's academic calendar. Beginning in School Year 2025-2026, all campuses will have an early release schedule on Thursday.

Uniform Expectations

Standards for dress and grooming are to be maintained to ensure that instruction is not disrupted or negatively affected. Student dress and grooming at sponsored activities and social events is not to disrupt or detract from the purpose of the event. A uniform dress code is in place and incorporated in the rules of conduct.

Uniform Violations
Staff will take action when students do not meet uniform expectations. One or more of the following consequences may be issued depending on the number of violations: Teacher/Staff assigned consequence, Community Service, Referral to Administration, Parent/Guardian Meeting, Telephone Call to Parent/Guardian (to bring the correct uniform attire), in-School Suspension, and/or Out-of-School Suspension.

Behavioral Standards and Expectations

Positive Behavioral Interventions and Supports (PBIS)
PBIS is a research and evidence based, three tier framework designed for schools to promote school safety, good behavior, and social emotional growth. This proactive approach emphasizes proactive prevention rather than punishment, seeking to reduce or eliminate poor schoolwide behavior through the focus and recognition of positive behaviors. The goal is to create a positive school culture and climate in which all students can learn and grow. Amerischools is in year 3 of its PBIS implementation during the 2025-2026 School Year.

AmeriSchools recognizes that all students have the ability to learn and grow both academically and socially. By teaching clearly defined expectations for behavior and providing a clear understanding responses to behavior (both positive and corrective), all students are more likely to be able to meet and exceed those expectations. This multi-tiered continuum of approach to student behavior and growth supports the academic, social, and behavioral competence for all levels of students.

Behavioral Standards
In order to assist students in the pursuit of a quality education, we have established behavior standards. These standards are designed to create a pleasant and safe environment and improve self-concept for all students in our school. Students are responsible for their own actions and if they choose to violate school standards, students also choose to accept the consequences.

Students are expected to demonstrate appropriate conduct in the classroom, on campus, and at off- campus school-sponsored events. Accordingly, students are prohibited from engaging in behavior that
(1) obstructs, disrupts, or interferes with any educational, administrative, disciplinary or other activity sponsored or approved by the School; (2) endangers or threatens the safety of any person; or (3) inflicts or threatens to inflict damage on property of the School, school employees, students or others.
School rules apply, and students are subject to discipline, during: (1) any school activity/event, home or away, day or night; (2) coming to and going from school or school activity; (3) in classrooms, on campus or on any School property; or (4) in any other situation in which the School may lawfully exercise jurisdiction over a student, such as students who have committed or who are believed to have committed a crime. For any imposition of discipline, due process procedures will be closely followed.

Categories of Misconduct

The following chart describes the behaviors that are prohibited at AmeriSchools Academy and students who engage in the following behaviors will be subject to consequences

*For these categories, school officials are required to report them to Arizona Department of Education.

**These problem areas also violate state law. For these categories, school officials are required to report them to Arizona Department of Education and to local law enforcement.

Academic Cheating	
Lying	To make an untrue statement with the intent to deceive, to create a false or misleading impression.
Cheating	Wrongfully securing and/or using information or assisting others to do so.
Forgery	Falsely and fraudulently making or altering a document, writing or using the signature or initials of another person.
Plagiarism	To steal and pass off the ideas or words of another as one's own.
AI Violation	Misrepresentation of a student's academic performance, privacy violations, or other inappropriately generated content through the use of automatic computer generated information.
Aggression	
Verbal Provocation	Use of language or gestures that may incite.
Minor Aggressive Acts	Non-serious but inappropriate physical contact, i.e., hitting, poking, pulling or pushing, running in the building, hallways, pulling a chair from underneath another person, or other behaviors that demonstrate low level hostile behaviors.
Disorderly Conduct	Intent to disturb the peace or quiet of others.
Recklessness	Unintentional, careless behavior that may pose a safety or health risk for others.
Endangerment*	Recklessly endangering another person with a substantial risk of imminent physical injury.
Fighting*	Mutual participation in an incident involving physical violence, where there is not major injury.
Assault*	Intentionally, knowingly or recklessly causing any physical injury to another person; intentionally placing another person in reasonable apprehension of imminent physical injury or knowingly touching another person with the intent to injure, insult or provoke the person.
Aggravated Assault**	An assault in which a person causes serious physical injury to another or an assault on a peace officer, teacher or other employee of the charter.

Alcohol, Tobacco, and Other Drugs	
Alcohol** Distribution, Share	Distribution and share means the act of giving alcohol, including passing of alcohol from one person to another.
Alcohol** Possession, Use	Possession, use of or being under the influence of alcohol.
Alcohol** Sale	Sale or intent to sell alcoholic substances or substances represented as alcohol.
Tobacco* Distribution, Share	Distribution and share means the act of giving tobacco from one person to another.
Tobacco* Possession, Use	Possession or use of tobacco substances, products, or substances represented as tobacco.
Tobacco* Sale	Sale of tobacco substances, products, or substances represented as tobacco.
Drug Paraphernalia**	All equipment, products, and materials of any kind which are used, intended for use, or designed for use in growing, manufacturing, producing, packaging, concealing, injecting, inhaling, or otherwise introducing into the human body a drug.
Drug	*To include over-the-counter medications, prescribed drugs (see Medication policy in Student Handbook), and non-prescribed drugs.*
Drug** Distribution, Share	Distribution and share means the act of giving drugs, including passing of drugs from one person to another.
Drug** Possession, Use	Possession, use, or purchase of drugs.
Drug** Sale	Sale, intent to sell, or manufacture of drugs.
Arson**	Attempting to or intentionally burning of a building, structure, or property.
Attendance Policy Violation	
Tardy	Unexcused lateness to class. *Please see Student Handbook regarding arriving to school late.
Leaving School Grounds Without Permission	Leaving school grounds or being in an "out of bounds" area during the regular school hours without permission.
Harassment Threat or Intimidation	
Harassment* Nonsexual	Communication with another person anonymously or by verbal, electronic, mechanical, telegraphic or written means with the intent to harass based on and/or motivated by race, ethnicity, religion, national origin or disability.
Bullying*	Use of language or conduct that is threatening and/or intimidating that involves an imbalance of power or strength, and that is repeated over time.
Intimidation*	Use of language or conduct to frighten, attempt to frighten or coerce another person into submission or obedience.
Threatening*	Use of language or conduct to make or attempt to make another person fearful of physical injury.
Hazing*	Any activities that can be considered any type of initiation of another student.
School Policy Violations	
Defiance, Disrespect Towards Authority and Non-Compliance	Student engages in refusal to follow directions, talks back, or delivers socially rude interactions.
Combustibles	Student is in possession of substance or object that is readily capable of causing bodily harm or property damage, i.e., matches, lighters, firecrackers, gasoline, and lighter fluid.
Contraband	Items that may disrupt the learning environment.
Disruption	Student engages in behavior causing an interruption in a class or

	activity. Disruption includes sustained loud talk, yelling, or screaming; noise with materials; horseplay or roughhousing; or sustained out-of-seat behavior.
Gambling	To play games of chance for money or to bet a sum of money.
Inappropriate Language	Student delivers verbal or written messages that include swearing, name calling, or use of words in an inappropriate way.
Public Display of Affection	Holding hands, kissing, sexual touching, or other displays of affection.
Gang Activity/Involvement	To include flashing of gang signs, inappropriate verbal comments or physical gestures, gang clothing colors or symbols worn on the body or symbols or gang words drawn on books or material.
Sexual Offenses	
Pornography	Possession, distribution, or sale of any pornographic materials.
Indecent Exposure* or Public Sexual Indecency	The intentional exposure of one's body's privates in a manner that gives offense against accepted or prescribed behavior.
Sexual Harassment*	Sexual harassment is unwelcome conduct of a sexual nature that denies or limits a student's ability to participate in or to receive benefits, services, or opportunities in the school's program. It can include unwelcome sexual advances, requests for sexual favors, and other verbal, nonverbal, or physical conduct of a sexual nature. Does not include legitimate nonsexual touching or other nonsexual conduct.
Technology	
Computers or Network	Any violation of the Technology Usage Agreement.
Theft	
Theft	Taking or attempting to take money or property belonging to another person or the school.
Petty Theft	Thefts under $100.
Extortion*	Knowingly obtaining or seeking to obtain property or services by means of a threat.
Trespassing	
Trespassing	To enter or remain on a school campus without authorization or invitation and with no lawful purpose for entry. This includes students under suspension or expulsion and unauthorized persons who enter or remain on a campus after being directed to leave by the administrator or designee of the facility.
Vandalism	
Graffiti or Tagging	Writing on walls, drawings, or words that are scratched, painted, or sprayed on walls or other surfaces in public places.
Vandalism of Personal Property*	Willful destruction or defacement of personal property.
Vandalism of School Property*	Willful destruction or defacement of school property.
Weapons and Dangerous Instruments	
Firearms (including destructive devices)**	Possession or use of loaded or unloaded, operable or inoperable: • Handgun or pistol • Shotgun or rifle • Starter gun • Destructive device(bomb or grenade) • BB/pellet/airsoft gun • Other firearm or destructive device
Other Weapons**	Possession or use of: • Billy club • Brass knuckles • Knife with blade

	• Numchuks • School items (e.g., chairs, pencils, rulers, etc.)
Dangerous Items	Possession or use of: • Laser pointer • Mace • Paintball gun • Razor blade or box cutter • Simulated knife • Taser or stun gun • Tear gas • Other dangerous item
Simulated Firearm	Any simulated firearm made of plastic, wood, or any other material that is a replica, facsimile, or toy version of a firearm or any object such as a stick or finger concealed under clothing and is being portrayed as a firearm.

Consequences for Misconduct[1]

AmeriSchools Academy utilizes a progressive discipline approach, i.e., consequences for first offenses are less than that for any subsequent offense. In response to student violation of the Behavioral Standards and Expectations, the School may take actions that include, but are not limited to, the following:

- **Pre-referral interventions** – Depending on nature and intensity of the violation, students may be assigned a consequence from their teacher and/or staff, be assigned to community service in the School, or be removed from the activity.

- **Referral to Administration -** A formal conference is held between the student and one or more school officials. During this conference, the student must agree to correct his/her behavior.

- **Parent Involvement -** A parent/guardian will be notified of a student's referral for behavior via telephone, letter, email or personal contact. A conference may be conducted between the student, parent(s)/guardian(s), appropriate school personnel and any other individuals concerned.

- **In School Suspension (ISS) -** Parents/Guardians are notified by telephone, letter, email, or personal contact that their child has earned an ISS. Student will return the signed referral form to their teacher the day following the issuance. Students must bring required assignments, school supplies and a silent reading book. Students may also be assigned supervised community service during this time.

Short Term Suspension – A short-term suspension is any suspension for ten (10) days or less. There is no appeal available for short-term suspensions. A parent/guardian must be notified before the student is allowed to leave campus. If no parent/guardian contact can be made, the student may be isolated until dismissal time and then given a written message to the parents. A letter to the parent/guardian will be written within a reasonable time to explain the terms (including the possibility that a long-term suspension and/or expulsion is being recommended, if applicable) and reasons for the suspension and to request a meeting to solicit their help.

The following procedures will be followed for all short-term suspensions:

[1] For students in grades K-4th, please see "Suspension and Expulsion of Students in Grades K-4" section below

Step 1: The student will receive notice, written or oral, of the reason for suspension and the evidence the school authorities have of the alleged misconduct.

- After having received notice, the student will be asked for an explanation of the situation.
- The Principal, or other designated staff member, shall make reasonable efforts to verify facts and statements prior to making a judgment.

Step 2: A written record of the action taken is kept on file. The Principal or other administrator may:

- Suspend the student for up to ten (10) days.
- Choose other disciplinary alternatives.
- Exonerate the student.
- Suspend the student for ten (10) days pending a recommendation that the student be given a long-term suspension, expulsion or both.

- **Long Term Suspension -** A long term suspension is any suspension for more than ten (10) days. A parent/guardian must be notified before the student is allowed to leave campus. If no parent/guardian contact can be made, the student may be isolated until dismissal time and then given a written message to the parents. In all cases of long term suspension, it shall be for good cause and shall be reported within five days to the Governing Board by Principal or Administrator imposing the suspension.

  The following procedures will be followed for all long-term suspensions (and in addition to Steps 1 & 2 outlined above for a short term suspension):

  Step 3: A formal hearing will be arranged and conducted by a hearing officer, to be determined by the School.

  Step 4: A formal letter to the responsible parent or guardian will be mailed by certified mail with return receipt requested or delivered by hand (with an adult witness present) at least five (5) working days prior to the formal hearing. A copy of this letter will remain on file, and the letter should contain the following information:
  - The charges and the rule(s) violated.
  - The extent of the punishment to be considered.
  - The date, time, and place of the formal hearing.
  - A designation of the School's witnesses.
  - That the student may present witnesses.
  - That the student may be represented by counsel, at his/her own expense.
  - The name of the hearing officer.

  Step 5: A formal hearing will be held, during which the student will be informed of the following:
  - Nothing in these procedures shall be construed to prevent the students who are subject to the action and their parents or legal guardians and legal counsel from attending any executive (closed) session pertaining to the proposed disciplinary action, or from having

access to the minutes and testimony of such session or from recording such a session at the parent's or legal guardian's expense.

- The student is entitled to a statement of the charges and the rule violated.
- The student may be represented by counsel, without bias, and at his/her own expense.
- The student may present witnesses.
- The student or counsel may cross-examine witnesses presented by the School.
- The burden of proof lies with the School.
- Either the hearing must be recorded on tape or an official record must be kept in some other appropriate manner. In addition, parents are to be allowed to tape-record the hearing at their own expense.
- The School has the right to cross-examine witnesses and may be represented by an attorney.

Step 6:

- Upon the conclusion of a hearing by a hearing officer, in which a decision of long-term suspension is made, the decision may be appealed to the Governing Board. To arrange such an appeal, the parent(s) of the suspended student or the student must deliver to the Principal a letter directed to the Governing Body within five (5) working days after receiving written notice of the long-term suspension. The letter must describe in detail any objections to the hearing or to the decision rendered.

- The appeal to the Governing Board will be considered part of the record of the hearing. The decision of the individual serving in the capacity of the hearing officer will be deemed final, unless the Governing Board determines, by majority vote, that the student was not afforded his/her due process rights or that this policy was not followed in all substantive respects.

- **Expulsion -** Expulsion is the permanent exclusion of a student from school and all school activities, unless the Governing Board reinstates the student's privileges to attend the School. .A recommendation for expulsion shall be made by the Principal and forwarded to the Governing Board. A recommendation for expulsion may be made before, after or in conjunction with a long-term suspension hearing, if one is to be held. The authority to expel rests with the Governing Board and the Board's decision is final and there is no appeal of an expulsion decision.

  In each case in which a recommendation for expulsion has been presented to the Governing Board, the following steps shall be followed:
  Step 1: The student will receive notice, written or oral, of the reason for the recommendation and the evidence the school authorities have of the alleged misconduct.

  Step 2: The expulsion hearing should be scheduled so that it may be resolved, if reasonably possible, during the period of any suspension.

  Step 3: A formal letter to the responsible parent or guardian will be mailed by certified mail with return receipt requested or delivered by hand (with an adult witness present) at least five (5)

working days prior to the formal hearing. A copy of this letter will remain on file, and the letter should contain:

- A statement of the charges and the rule violated.
- The extent of the punishment to be considered.
- The date, time, and place of the formal hearing.
- A designation of the School's witnesses.
- That the student may present witnesses.
- That the student may be represented by counsel, at his/her own cost.
- That the Governing Board will be acting as the hearing officer.
- Copies of this policy and A.R.S. § 15-840 and 15-843 unless previously provided in connection with the same infraction.

Step 4: The parent or guardian shall be informed of the following:

- Nothing in these procedures shall be construed to prevent the students who are subject to the action and their parents or legal guardians and legal counsel from attending any executive (closed) session pertaining to the proposed disciplinary action, or from having access to the minutes and testimony of such session or from recording such a session at the parent's or legal guardian's expense.
- The student is entitled to a statement of the charges and the rule violated.
- The student may be represented by counsel, without bias, and at his/her own cost.
- The student may present witnesses.
- The student or counsel may cross-examine witnesses presented by the School.
- The burden of proof lies with the School.
- Either the hearing must be recorded on tape or an official record must be kept in some other appropriate manner. In addition, parents are to be allowed to tape-record the hearing at their own expense.
- The School has the right to cross-examine witnesses and may be represented by an attorney.
- The Governing Board will conduct the hearing in executive session with the attendance of only the administrative representatives, the student and parent(s), counsel for the parties, and witnesses necessary to the proceedings, unless the parent(s), guardian(s) or emancipated student requests in writing that the hearing be in an open meeting.

Step 5: A formal hearing will be held, and the decision of the Governing Board is final. If the Governing Board decides to expel the student, the expulsion becomes effective the next business day.

The long-term suspension or expulsion of students with disabilities shall be in accordance with the Individuals with Disabilities Education Act (IDEA) and federal regulations issued pursuant to the IDEA, as well as the Americans with Disabilities Act or Section 504 of the Rehabilitation Act of 1973.

- **Suspension and Expulsion of Students in Grades K-4**: Any suspension or expulsion of students in kindergarten through grade four (4) must comply with A.R.S. 15-843(K), as follows:

  Unless required by A.R.S. 15-841(G (bringing a firearm to School), a charter school may out-of-school suspend or expel a pupil who is enrolled in kindergarten through fourth grade (K-4) only if all of the following apply:

  A. The pupil is seven (7) years of age or older.
  B. The pupil engaged in conduct on School grounds that meets one (1) of the following

criteria:

1. Involves the possession of a dangerous weapon without authorization from the School.
2. Involves the possession, use or sale of a dangerous drug as defined in A.R.S. 13-3401, or a narcotic drug as defined in A.R.S. 13-3401 or a violation of A.R.S. 13-3411.
3. Immediately endangers the health or safety of others.
4. The pupil's behavior is determined by Charter School Governing Body to qualify as aggravating circumstances and that all of the following apply:
    a) The pupil is engaged in persistent behavior that has been documented by the School and that prevents other pupils from learning or prevents the teacher from maintaining control of the classroom environment.
    b) The pupil's ongoing behavior is unresponsive to targeted interventions as documented through an established intervention process that includes consultation with a school counselor, school psychologist or other mental health professional or social worker if available within the Charter School or through a state sponsored program.
    c) The pupil's parent or guardian was notified and consulted about the ongoing behavior.
    d) Before a long-term suspension or expulsion, the school provides the pupil with a disability screening and the screening finds that the behavioral issues were not the result of a disability.

C. Failing to remove the pupil from the School building would create a safety threat that cannot otherwise reasonably be addressed or qualifies as "aggravating circumstances."

D. Before suspending or expelling the pupil, the Charter School considers and, if feasible while maintaining the health and safety of others, in consultation with the pupil's parent or guardian to the extent possible, employs alternative behavioral and disciplinary interventions that are available to the Charter School, that are appropriate to the circumstances and that are considerate of health and safety. The Charter School shall document the alternative behavioral and disciplinary interventions it considers and employs.

E. The Charter School, by policy, provides for both:
    1. A readmission procedure for pupils who are in kindergarten through fourth grade (K-4) and who have served at least five (5) school days of a suspension from the School that exceeds ten (10) school days to be considered for readmission on appeal of the pupil's parent or guardian.
    2. A readmission procedure for pupils who are in kindergarten through fourth grade (K-4) and who are expelled from or subject to alternative reassignment at the school to be considered for readmission on appeal of the pupil's parent or guardian at least twenty (20) school days after the effective date of the expulsion or alternative reassignment.

"Aggravating circumstances" means the pupil is engaged in persistent behavior that:

1. Has been documented by the School.
2. Prevents other students from learning or prevents the teacher from maintaining control of the classroom environment.
3. Is unresponsive to targeted interventions as documented through an established intervention process.

Bullying/Harassment/Intimidation

AmeriSchools Academy's Governing Board is committed to providing all students with a safe school environment where everyone is treated with respect. Students have a right to be free from any form of bullying. Students, parents, and school employees have a right and a responsibility to report incidents of bullying.

Confidential Reporting

Students and parents/guardians have the right to confidentially report in writing to school administrators, teachers, or other staff members' instances of bullying, harassment, and intimidation (A.R.S. § 15-341(A)(36)). These reports will be shared with appropriate school officials so that appropriate steps can be taken to ensure that all students have a learning environment that is safe emotionally, mentally, and physically. Reports must be made within thirty (30) calendar days of the last incident.

Definitions

Bullying: Bullying of an individual or group can occur through written, verbal, physical, emotional or psychological methods. Bullying may occur when an individual or group engages in any form of behavior or aggression that includes such acts as intimidation and/or harassment that:

- has the effect of physically harming an individual, damaging an individual's property, or placing an individual in reasonable fear of harm or damage to property;
- is sufficiently severe, persistent or pervasive that the action, behavior, aggression, or threat creates an intimidating, threatening, hostile or abusive environment in the form of physical or emotional or psychological harm or distress;
- behavior, aggression or threat occurs repeatedly over time;
- occurs when there is a real or perceived imbalance of physical, emotional or psychological power or strength; or
- may constitute a violation of law.

***Harassment*:** Harassment is behavior by an individual or group that consists of systematic and/or continued unwanted and annoying actions, including threats and demands. Harassing conduct may take many forms, including verbal acts and name-calling (e.g., bullying); graphic and written statements, which may include use of cell phones, social-media or the Internet (e.g., cyberbullying); or other conduct that may be physically threatening, harmful, or humiliating. Harassment does not have to include intent to harm, be directed at a specific target, or involve repeated incidents. Harassment creates a hostile environment when the conduct is sufficiently severe, pervasive, or persistent so as to interfere with or limit a student's ability to participate in or benefit from the services, activities, or opportunities offered by a school. Harassment based on race, disability, sex, religious orientation, sexual orientation, cultural background, economic status, size or personal appearance may violate an individual's civil rights when such harassment is sufficiently serious that it creates a hostile environment and such harassment is encouraged, tolerated, not adequately addressed or ignored.

***Cyberbullying*:** Cyberbullying is, but not limited to, any act of bullying or harassment committed by use of electronic technology or electronic communication devices, including telephonic devices, social networking and other Internet communications, on school computers, networks, forums and mailing lists, or other District-owned property, and by means of an individual's personal electronic media and equipment.

Intimidation: Intimidation is intentional behavior by a student or group of students that places another student or group of students in fear of harm of person or property. Intimidation can be manifested emotionally or physically, either directly or indirectly, and by use of social media.

Reporting Incidents of Bullying or Harassment

Students and others should report any incidents of bullying to a teacher, school administrator or any other school employee (i.e., educational assistant, receptionist, etc.). It is mandatory that school employees report any incidents of bullying in writing to school administration. Students who cannot immediately file a report must do so within thirty (30) calendar days of the last incident.

The school employee receiving the report/complaint who believes a student has been subjected to bullying or personally witnesses bullying shall:

- Check to see if an outside agency needs to be contacted (i.e., Department of Child Safety or law enforcement).
- Have the student complete a *Student Concerns, Complaints, and Grievances Form* (In Appendix A). An adult may assist the student in completing the *Student Concerns, Complaints, and Grievances Form* if necessary.
- At a minimum, the report/complaint shall be put in writing containing the identifying information on the complainant and such specificity of names, places and times as to permit an investigation.
- At a minimum, the school employee shall put the report/complaint in writing containing the identifying information on the complainant and such specificity of names, places and times as to permit an investigation.
- When a school employee receives the information, the employee will give the information to the school administrator no later than the next school day following the day of the report/complaint.

All violations of the policy shall be treated in accordance with the appropriate procedures and penalties provided for under the Behavior Standards and Expectations section of this student handbook and A.R.S. § 15-341(36). Any student who has committed the act of bullying/harassment/intimidation, intentionally files a false report or has retaliated against another who has participated in any manner in an investigation, proceedings or hearing conducted in response to an investigation of bullying, will be subject to consequences.

Procedures for Investigation of the Report/Complaint

A school administrator shall investigate the incident or the activity within ten (10) school days. Extension of the timeline may only be by necessity as determined by the Regional Executive Director. A school administrator shall check to see if an outside agency needs to be contacted (i.e., Department of Child Safety or local law enforcement authorities. A school administrator shall complete a Student Discipline Referral form if the student is found to have violated the bullying policy.

All violations of this policy shall be treated in accordance with the appropriate procedures and penalties provided for in school policies related to the conduct and discipline of students, staff, and others. A

complaint may be withdrawn at any time. If the person chooses to re-file the complaint, it must be re- filed within 30 calendar days of the original incident.

Restraint and Seclusion

This Policy addresses the behavior management techniques to be used with students attending AmeriSchools Academy. Behavior management techniques such as restrain, seclusion, temporary removal from the classroom and confinement shall be utilized in accordance with the following standards:

Temporary Removal

Teachers are authorized to temporarily remove a student from a class. A teacher may temporarily remove a student to maintain effective discipline in the classroom and send them to the Principal, or to another administrator, as long as the removal is compliant with the following:

1. The teacher has documented that the student has repeatedly interfered with the teacher's ability to communicate effectively with the other students in the classroom or with the ability of the other students to learn; or

2. The teacher has determined that the student's behavior is so unruly, disruptive or abusive that it seriously interferes with the teacher's ability to communicate effectively with the other students in the classroom or with the ability of the other students to learn.

Confinement

Under A.R.S. § 15-843, the Principal shall ensure that disciplinary practices involving the confinement of students left alone in an enclosed space shall include the following:

- Prior written parental notification that confinement may be used for disciplinary purposes is included in the student's enrollment packet or admission form.
- Written parental consent has been obtained before confinement is allowed for any student in the School.
- An exemption to prior written parental consent exists if a school principal or teacher determines that the student poses imminent physical harm to self or others. In this instance, the school principal or teacher shall make reasonable attempts to notify the student's parent or guardian in writing by the end of the same day that confinement was used.

Use of Restraint and Seclusion

The use of restraint or seclusion is not to be limited, by policy or practice, to students with disabilities. Restraint and Seclusion are defined in A.R.S. § 15-105 as follows:

"Restraint" means any method or device that immobilizes or reduces the ability of a student to move the student's torso, arms, legs or head freely, including physical force or mechanical devices. The following are *not* considered to be a restraint:

a) Methods or devices implemented by trained school personnel or used by a student for the specific and approved therapeutic or safety purposes for which the method or device is designed and, if applicable, prescribed.
b) The temporary touching or holding of the hand, wrist, arm, shoulder or back for the purpose of inducing a student to comply with a reasonable request or to go to a safe location.
c) The brief holding of a student by one adult for the purpose of calming or comforting the student.

d) Physical force used to take a weapon away from a student or to separate and remove a student from another person when the student is engaged in a physical assault on another person.

"Seclusion" means the involuntary confinement of a student alone in a room from which egress is prevented. Seclusion does not include the use of a voluntary behavior management technique, including a timeout location, as part of a student's education plan, individual safety plan, behavioral plan or individualized education program that involves the student's separation from a larger group for purposes of calming.

Restraint or seclusion techniques may be used on any student if both of the following apply:

1. The student's behavior presents an imminent danger of bodily harm to the student or others; and
2. Less restrictive interventions appear insufficient to mitigate the imminent danger of bodily harm.

If a restraint or seclusion technique is used on a student:

- The use of restraint or seclusion is to be used only in an emergency to protect persons from imminent, serious physical harm to self or others.
- The restraint or seclusion technique shall be used only by school personnel who are trained in the safe and effective use of restraint and seclusion techniques unless an emergency situation does not allow sufficient time to summon trained personnel.
- School personnel shall maintain continuous visual observation and monitoring of the student while the restraint or seclusion technique is in use. If seclusion is utilized, school staff must reassess the child every thirty (30) minutes and if the need for seclusion extends beyond one hour, an administrator's approval is required for continued seclusion.
- Any area used for seclusion must be free of objects that could cause harm, must provide for adequate visual and audio supervision of the student, must provide adequate lighting and ventilation, and must not be locked.
- The restraint or seclusion technique shall end when the student's behavior no longer presents an imminent danger to the student or others.
- The restraint technique employed may not impede the student's ability to breathe.
- The restraint technique may not be out of proportion to the student's age or physical condition.
- A debriefing with affected staff and parents and, if appropriate, the student must be conducted within forty-eight (48) hours. During the debriefing a determination should be made regarding the need for a functional behavioral assessment (FBA).
- A student who has required crisis management on the part of the school staff more than three (3) times in a semester must have a functional behavioral assessment (FBA) and, if appropriate, a behavior intervention plan (BIP) developed within a reasonable time following the third (3rd) restraint or seclusion incident.

AmeriSchools Academy requires the following procedures to be adhered to when a restraint or seclusion technique has been used on a student:

1. School personnel shall provide the student's parent or guardian with written or verbal notice on the same day that the incident occurred, unless circumstances prevent same-day notification. If the notice is not provided on the same day of the incident, notice shall be given within twenty- four hours after the incident.

2. Within a reasonable time following the incident, school personnel shall provide the student's parent or guardian with written documentation that includes information about any persons, locations or activities that may have triggered the behavior, if known, and specific information about the behavior and its precursors, the type of restraint or seclusion technique used and the duration of its use.

3. Schools shall review strategies used to address a student's dangerous behavior if there has been repeated use of restraint or seclusion techniques for the student during a school year. The review shall include a review of the incidents in which restraint or seclusion technique were used and an analysis of how future incidents may be avoided, including whether the student requires a functional behavioral assessment.

4. If the need to contact and request support from law enforcement instead of using a restraint or seclusion technique on a student is determined necessary, the school shall comply with the reporting, documentation and review procedures established under the paragraphs above.

Corporal Punishment
For the purposes of this Policy, corporal punishment is defined as the deliberate infliction of pain intended to discipline or reform a person's bad attitude and/or behavior. AmeriSchools Academy prohibits the use of corporal punishment.

Search and Seizure

School officials may conduct searches when there is reasonable suspicion that the search will yield evidence of the student's wrongdoing or when there is evidence that students and/or staff are in imminent danger of injury on school grounds. Items provided by the School for storage (e.g., lockers, desks) or personal items are provided as a convenience to the student but remain the property of the school and are subject to its control and supervision. Students have no reasonable expectancy of privacy in their lockers, desks, storage areas, etc., and these areas may be inspected at any time with or without reason, or with or without notice, by school personnel.

School officials conducting a search or seizure will follow these guidelines:

1. The search will be restricted to the information that justified the search in the first place.

2. General searches of school property (including personal items found in and on school property) may be conducted at any time when there is reasonable suspicion for school officials to believe that something violates the law or school rules is on school property. This search of school property may be made without the student being present.

3. Illegal items (firearms, explosive devices, weapons, tobacco, alcohol, drugs) or other possessions reasonably determined to be a threat to the safety, security of others, or might possibly interfere with school purposes shall be seized by school officials.

4. Items that are used to disrupt or interfere with the educational process may be temporarily removed from a student's person.

5. A student's person may be searched by school employees when there is reasonable suspicion to believe that the student has on his/her person illegal items or other items that may interfere with any school purpose.

6. School employees may search motor vehicles parked on school property when there is individualized and reasonable suspicion that the search of a student's effects will yield evidence of misconduct.

Student Interviews
School officials may question and/or interview students regarding matters related to the health, safety and welfare of students and staff without limitation. The parent will be contacted if a student interviewed is then subject to discipline for violation of the School's behavioral standards and expectations.

Weapons and Violence Policy

Weapons Prohibited
All students are prohibited from possession of any weapon at any time on school property or during any school activity and/or event on or off campus. A weapon may be an item a student may use to physically threaten, assault, attack or harm another person such as, guns, knives, razors, explosive devices, and/or any other item a student may bring to school and use to defend him/herself or harm another person. Misuse of school items such as chairs, pencils, rulers, etc. to assault and/or harm another person will also be considered as use of a weapon.

A student who violates this policy by carrying or possessing a firearm shall be placed in an alternative education program for a period of not less than one (1) year, suspended for a period of not less than one (1) year, or expelled and not be readmitted within a one (1)-year period, if ever. The Governing Board, in its sole discretion, may modify the one (1)-year duration of such disciplinary action on a case-by-case basis.

A student who violates this policy by any means other than carrying or possessing a firearm shall be subject to disciplinary action, including but not limited to expulsion. Disciplinary action against a student with disabilities shall be applied on a case-by-case basis in accordance with School policies and state and federal special education laws.

Any employee who observes any person in possession of a weapon or simulated weapon on school premises shall immediately report the matter to the School principal. The Principal shall immediately take appropriate safety and disciplinary actions in accordance with School policies and shall immediately report a violation of this policy to a peace officer, pursuant to A.R.S. § 15-515, if the weapon is a deadly weapon or the student is a minor in possession of a firearm.

Violence Prohibited
All students are prohibited from displaying violent acts that result in injury to another person and/or destroy or damage school property. Further students cannot, through verbal or written expression, threaten to destroy or damage school property and/or cause injury or death or students, staff or visitors. In the event of such an action, law enforcement authorities will be contacted. *Any student who commits an act of violence will be immediately suspended and may be recommended for expulsion.*

Consequences for acts of violence depend upon the student's intent to cause personal injury, the behavior resulting in personal injury, the behavior resulting in destruction or damage of school property, student's verbal or written threat to destroy school property, and student's verbal or written threat to injure and/or kill students, staff and/or visitors.

Gang Activity/Involvement
All students are prohibited from involvement in gang activities at any time on school ground or during any school activity and/or event on or off campus. Gang activity includes but is not limited to inappropriate verbal comments, physical gestures, behavior, and possession of gang paraphernalia or clothing used to promote or advertise gangs. *Any student that displays gang activity/involvement will be immediately suspended and may be recommended for expulsion.*

Gang activity or involvement may include flashing of gang signs, inappropriate verbal comments or physical gestures, gang clothing colors or symbols worn on the body or symbols or gang words drawn on books or materials.

Sexual Harassment

Title IX of the Federal Education Amendments Act ("Title IX") protects people from discrimination based on sex in education programs or activities that receive Federal financial assistance. Amerischools does not discriminate on the basis of sex and adheres to all conditions established by Title IX by recognizing the right of every student who attends Amerischools to do so without the fear of sexual harassment. Amerischools's Grievance Procedure and Title IX Policy may be found on Amerischools's website. Inquiries about the application of Title IX or formal complaints should be directed to Amerischools's Title IX Coordinator:

Monica Kern
HR Director and Title IX Coordinator
1150 N. Country Club Rd
Tucson, AZ 85716
mkern@amerischools.org

Sexual harassment is defined as: Conduct on the basis of sex that satisfies one or more of the following: (1) An employee of Amerischools conditioning the provision of an aid, benefit, or service of Amerischools on an individual's participation in unwelcome sexual conduct; (2) Unwelcome conduct determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively denies a person equal access to Amerischools's education program or activity; or (3) "Sexual assault" as defined in 20 U.S.C. 1092(f)(6)(A)(v), "dating violence" as defined in 34 U.S.C. 12291(a)(10), "domestic violence" as defined in 34 U.S.C. 12291(a)(8), or "stalking" as defined in 34 U.S.C. 12291(a)(30).

Any person may report sex discrimination, including sexual harassment, regardless of whether the person reporting is the person alleged to be the victim of the reported conduct or not. A report may be made in person, by mail, by telephone, or by electronic mail, using the contact information listed for the Title IX Coordinator, or by any other means that results in the Title IX Coordinator receiving the person's verbal or written report. Complaints of sex discrimination that are not sexual harassment will be handled pursuant to Amerischools's regular procedures for resolving student or employee grievances promptly and equitably. Formal complaints of sexual harassment will be handled using the grievance procedure set forth in Amerischools's Policy. Amerischools shall follow grievance procedures that provide for the prompt and equitable resolution of formal complaints from students and employees alleging sexual

harassment.

Drug and Tobacco Free Campus

AmeriSchools Academy is a Drug and Tobacco Free zone. Arizona law specifically disallows any type of tobacco, including vaping products and paraphernalia, on public school campuses. This includes outside on the grounds or in the parking lot. This also includes all forms of tobacco. **No parent/guardian, student, staff member or other person may smoke or have tobacco products anywhere on the campus at any time.**

All students are prohibited from possession, use and distribution of any and all drugs (prescribed, non-prescribed, over-the-counter), alcohol, and tobacco (any type, including vaping products) on school grounds or during any school sponsored event or activity on or off campus. In the event of such an action, law enforcement authorities will be contacted. *Any student who possesses uses or distributes any drugs, alcohol or tobacco will be immediately suspended and may be recommended for expulsion.*

Personal Items

Personal items are not to be brought from home, excluding items for show-and-tell, class projects, clothing, backpacks, and classroom supplies. Students are to receive prior approval from the teacher before bringing items from home, and items are to be kept in the School Office or with the teacher. Students bringing items to school without permission may face disciplinary action and parents are notified. If students inadvertently bring items to school and immediately turn them in to the School Office, students may not face disciplinary action.

Items remaining on campus at the end of the school year are donated to a local charity or discarded. Students may not sell or trade personal items (i.e., trading cards, pens) on campus and may not exchange gifts at school, unless it is for a class activity approved by the teacher. Loss of items is to be reported to the classroom teacher and School Office.

AmeriSchools Academy is not responsible for the loss or damage to personal items brought to school.

Examples of items not allowed on campus are:

- Electronic Equipment and Games, such as unapproved Bluetooth devices (including smart watches, ear buds or headphones) video games (portable or console), etc.
- Non-Motorized Vehicles, such as Rollerblades, Skateboards, Shoes with Wheels, Scooters.
- Toys, such as Stuffed Animals, Hot Wheel Cars or playing/trading cards.
- Bringing in any foodstuffs for unapproved sale or distribution purposes
- Gum, soda, energy drinks
- Excessive amounts of cash.

Cell Phones

AmeriSchools Academy realizes that cell phones are a part of society; however, they can be disruptive to the educational environment. Student possession and use of electronic devices on school grounds, at school- sponsored activities, and while under the supervision of AmeriSchools employees is a privilege which will be permitted only under the circumstances described herein.

The use of cell phones includes making phone calls, receiving phone calls, ringing or other sounds, playing music or video, text messaging, use of cell phone cameras, or any other electronic function. Unless given explicit permission by a school administrator, students will be expected to turn their cell phones in to their teacher in the morning and it will be returned at the end of the school day. The visible or audible discovery of an unapproved electronic device (including cell phones) may result in confiscation and/or a device turn in plan. At no time will any student operate a cell phone or other electronic device with audio and/or video capabilities in a locker room, bathroom, or other location where a reasonable amount of privacy can be expected.

Students may not use electronic devices on campus unless under the direction and supervision of a staff member before or after school hours. Unauthorized use of such devices disrupts the instructional program and distracts from the learning environment. Therefore, unauthorized use is grounds for confiscation of the device by school officials, including classroom teachers. Confiscated devices will be returned to the parent or guardian. Repeated unauthorized use of such devices will result in disciplinary action.

Conduct of Visitors/General Public on School Property

The definition of general public is anyone who does not come under the definition of student, faculty member, staff member, or employee.

- All visitors, parents, guardians, etc. who visit the School for any reason (i.e. volunteering in the classroom, observation, meeting with school staff, etc.) are required to enter the School through the main/front doors, report to the school office, sign in, present identification, and wear a visitor badge at all times. In order to ensure the safety of the campus community, entrance to the School through other entrances is not permitted by visitors. All visitors must be escorted by a staff member at all times.

- No person shall visit or audit a classroom or other School activity, nor shall any person come upon or remain upon School premises, without prior approval by the Principal or the Principal's authorized representative. Nor shall any person conduct or attempt to conduct any activity on School premises without prior approval by the Principal or Principal’s authorized representative.

- Any member of the general public considered by the Principal, or a person authorized by the Principal, to be in violation of these rules shall be instructed to leave School property. Failure to obey the instruction may subject the person to criminal proceedings pursuant to A.R.S. § 13-2911 and to any other applicable civil or criminal proceedings, or to tribal ordinance.

- Persons who engage in disorderly conduct of any kind may be subject to removal and exclusion from the School.

- No person shall possess or engage in the use of medical marijuana on School property or at school-sponsored events.

- No person shall engage in conduct that may cause interference with or disruption of an educational institution. Interference with or disruption of an educational institution includes any act that might reasonably lead to the evacuation or closure of any property of the educational institution or the

postponement, cancellation or suspension of any class or other school activity. For the purposes of this policy, an actual evacuation, closure, postponement, cancellation or suspension is not required for the act to be considered interference or disruption.

A person commits interference with or disruption of an educational institution by doing any of the following:

- Intentionally, knowingly or recklessly interfering with or disruption of the normal operations of the School by either:
    a) Threatening to cause physical injury to any employee or student of the School or any person on the property of the School.
    b) Threatening to cause damage to the School, the property of the School, or the property of any student or employee of the School.
- Intentionally or knowingly entering or remaining on the property of the School for the purpose of interfering with or denying lawful use of the property to others.
- Intentionally or knowingly refusing to obey a lawful order given by the Principal, Director of Operations, or another person designated to maintain order at the School.

The above identified acts need not be directed at a specific individual, the School, or specific property of the School to constitute a violation of this policy. Restitution for any financial loss caused by a violation of the policy may be required. Furthermore, an individual who interferes with or disrupts an educational institution is subject to misdemeanor or felony charges as provided in A.R.S. § 13-2911.

A person may also interfere with or disrupt the operation of the School by committing any of the following:

- Any conduct intended to obstruct, disrupt, or interfere with teaching, research, service, administrative, or disciplinary functions or any activity sponsored or approved by the School Board.

- Physical or verbal abuse or threat of harm to any person on property owned or controlled by the School or at school-sponsored functions.
- Forceful or unauthorized entry to or occupation of School facilities, including both buildings and grounds.

- Illicit use, possession, distribution, or sale of tobacco, alcohol, or drugs, other controlled substances, or other illegal contraband on School property or at school-sponsored functions.

- Use of speech or language that is offensive or inappropriate to the limited forum of the public school educational environment.

- Failure to comply with the lawful directions of School officials or of law enforcement officers acting in performance of their duties, and failure to identify oneself to such officials or officers when lawfully requested to do so.

- Knowing violation of a School rule and/or Policy. Proof that an alleged violator has a reasonable opportunity to become aware of such rules and regulations shall be sufficient proof that the violation was done knowingly.

- Any conduct constituting an infraction of any federal, state, or city law or policy of the School Board.

- Carrying or possessing a weapon on School grounds unless the individual is a peace officer or has obtained specific authorization from the appropriate School administrator.

General School Procedures

Student Early Check Out Policy

We hold the safety of our students in the highest regard. Due to this, adults wishing to check out a student must provide an identification card to the office manager before a student will be dismissed to the adult. Additionally, students will only be released to adults listed on the student's information profile or emergency contact form.

Please note that students dismissed early from the school day may adversely affect their students' attendance and academic achievement. Students who are picked up early frequently may be subject to the school's attendance and truancy policies. Unless there is an emergency situation, it is strongly encouraged that students remain in attendance for the entire school day. Students will still be expected to complete and make up any missed work.

Teacher and Parent Communication

Due to the critically important jobs our teachers have in educating our students, parents will not be able to speak to teachers during the school day unless an appointment is made at least 24 hours in advance. We encourage parents to communicate electronically via a teacher's email. Please be sure to include our name, student's name, phone number, and reason for your communication and the appropriate teacher will respond within a timely manner. If you do not receive a response please notify the office manager.

We encourage parents to communicate with their teachers during the school week. Any communication received outside of school hours or over the weekend will be reviewed and responded to in the order in which they were received.

Supplies

The School is to provide students with subject matter materials and supplementary books as prescribed by law or legal opinion.

AmeriSchools is a one-to-one technology school district. All students will be provided a school laptop (or an iPad for younger students) for use while enrolled with AmeriSchools. Students and families are expected to keep the school device in working condition, and will be responsible for any damages, loss, or theft incurred. If a student disenrolls with the school, any school property (including laptops) will be expected to be returned to the office upon disenrollment.

Supplementary technology (including a computer mouse, headphones, etc) will also be provided as needed by school curriculum or a student's IEP/504 plan. These items are considered school property and must be returned upon disenrollment.

Classroom supply lists may be provided at the beginning of the school year. The school may have a limited quantity of basic supplies available for student use, but parents are strongly encouraged to provide the items mentioned on the list. The school may ask for donations to help supplement and replenish community supplies as the need arises.

Field Trips
Travel provisions required to participate in Academy activities are the responsibility of the site Principal. Regardless of the source of funding for an activity, the Principal is to request approval by the Chief Executive Officer or designee for transportation or subsistence accommodations required by staff members, chaperones and students. **Travel is defined as utilizing public or private transportation, including but not limited to school vans, city buses, light rail, airlines, leased vehicles, buses or conveyances used for water transport. Subsistence accommodations are defined as lodging or food service required during travel.**

If a volunteer of majority age transports any student, the Principal must obtain written permission from all students, verify the validity of insurance coverage, Fingerprint Clearance Card, and driver's license. Any chaperone on an off-campus field trip or a volunteer who will supervise students will be expected to maintain and provide a valid Fingerprint Clearance Card (FCC). A copy of the insurance is to be retained in the travel records indicating limits of liability no less than $100,000/300,000. The driver's license is to be checked for validity by the Executive Office at www.servicearizona.com, including a verification check from the National Sex Offender Registry at http://www.familywatchdog.us/. There is no exception for this policy provision.

Food and Beverage
Lunch is provided for our students to purchase at AmeriSchools Academy Yuma North and South. AmeriSchools Academy Tucson and Phoenix participates in the National School Lunch Program (NSLP) and free breakfast and lunch are provided. Students may bring their own lunches if they prefer.

Curriculum and Academics

The curriculum is designed to foster academic excellence through continuous progress practices. The establishment of measurable pathways for instruction permits the assessment of academic standards that encompass family, community and cultural influences.

The objectives for instruction are written as a progression of skills to demonstrate the continuous progress of students. Such a curriculum illustrates the relationship, transition and articulation between learning communities, including teacher and parent. The curriculum is aligned with the essential skills outlined in the Arizona Academic Standards. Continuous assessment of the curriculum and the implications for future learning and teaching are important aspects of the curriculum model. The learner is at the very center of the curriculum. **The learner is the curriculum.**

Comprehensive Program of Instruction
The program of instruction is designed to enable parents, community members and educators to assume responsible risks to create innovative and more flexible ways of educating children. This permits a committed community to address the needs of all students regardless of circumstance or condition.

Instructional goals address the issue of the institution as a building block in the life of the individual student. To do less is to ignore the reality of what is truly transpiring through teaching and learning. Institutional goals include, but are not limited to:

1. The maintenance of a school culture that is measurably dedicated to student success, with the demonstration of exemplary competencies in core academic subjects.
2. Support the articulation and maintenance of norms for institutional development and identity.
3. Maintain a student retention rate of 80% or more.

4. Create a secure drug/tobacco free environment for students, including medical marijuana and E-cigarettes, which contain unknown ingredients or substances affecting the health of students or staff.
5. Foster spontaneity within the institution to favor change and opportunity.
6. Encourage formal and informal leadership among staff members.
7. Support a healthy yet competitive institutional environment.

Instruction (Grades K-8)
The program goal for grades K-8 is to teach cognitive and valuing skills through an integrated curriculum. An analysis of research points toward a multi-age structured format as the best means to meet the individual student's instructional needs. This includes those students categorized as members of the general populace, or those at-risk or gifted. Each student is to have educational opportunities based on the teacher's evaluations; student's self-evaluation; and recognition of parent expectations. This collaborative approach enhances the opportunity to meet the expectations of both students and parents.

Laws supporting open enrollment and the availability of regular public or charter schools are the bedrock of educational choice. Choice is a concept designed to enhance the academic achievement of students. Student achievement is measurably enhanced by parents or guardians who support or implement initiatives to assure the progress for each student.

Promotion and Retention Standards
AmeriSchools Academy has high standards for promotion. Students must earn their promotion to the next grade level by demonstrating mastery of the grade level's rigorous standards, as set forth by the State Board of Education. Although attendance may not be the sole reason for retention, chronic attendance issues also impact student mastery of standards, at which point may result in retention.

Students in grades 3 will be expected to pass the state's requirements for Move On When Reading (MOWR). Students who are not able to demonstrate mastery of the MOWR standards may either be retained or referred to summer school for additional instruction depending on the student's level. Students who attend summer school with fidelity and demonstrate successful improvement and mastery of MOWR standards may then be promoted.

Decisions to retain a student are solely made by the classroom teacher in compliance with A.R.S. 15-701(E). Pursuant to A.R.S. 15-342(11), the Governing Board may review the decision of a teacher to promote or retain a student upon request from the parent/guardian. The parent/student will have the burden of proof to overturn the teacher's decision and shall demonstrate to the Governing Board that the student has mastered the academic standards adopted by the State Board of Education. If the Governing Board overturns the decision to promote or retain the student, the Governing Board shall adopt a written finding that the student has mastered the academic standards. All reviews by the Governing Board shall be conducted in executive session unless the parent/guardian requests that the review be conducted in an open meeting.

Artificial Intelligence (or AI) Policy
This policy is designed to provide clear guidelines for the responsible and ethical use of Artificial Intelligence (AI) in educational settings, ensuring compliance with Arizona state laws, student privacy protections, and academic integrity standards.

There are three primary areas of acceptable use of AI technology:

1. Educational Purposes – AI tools may be used to support learning objectives, such as research, skill-building, creative projects, and personalized instruction, under teacher guidance.
2. Skill Development – Teachers may use AI to enhance curriculum delivery, including adaptive learning programs, data-driven insights for student progress, and enrichment activities.

Students are prohibited from the use of AI technology for the following purposes:

1. Academic Misconduct – Students may not use AI tools to generate work for submission that misrepresents their own efforts, including essays, assignments, or other assessments.
2. Privacy Violations – Students are not allowed to enter nay personally identifiable information about themselves, other students, or Amerischools staff.
3. Inappropriate Content – AI must not be used to create, access, or share harmful, violent, or age-inappropriate materials.

AmeriSchools teachers and staff have responsibilities for AI management, including vetting and obtaining approval for any tools approved by the school district or administration for classroom activities, monitoring students' use of AI to ensure compliance with this policy and appropriate use, and completing any training on the ethical integration of AI tools in classrooms. Teachers and staff will also maintain an up-to-date knowledge on any relevant laws or guidance regarding AI in the classroom.

Students and parents are expected to abide by the AI usage policy as a part of the school's curriculum. Any misuse of AI tools should be reported to school administration. All AI tools will be utilized in compliance with Arizona's data privacy laws, including any restrictions on third-party data sharing and storage.

Violations of this policy may result in consequences, including loss of use of AI tool access and/or disciplinary actions in line with the school's behavior policy.

Section 504 Services

In compliance with Section 504 of the Rehabilitation Act of 1973, no otherwise qualified individual with disabilities, shall solely by reason of his or her disability, be excluded from the participation in, be denied the benefits of, or be subjected to discrimination under any program or activity of AmeriSchools Academy.

The law also requires that facilities be readily accessible for use by individuals with disabilities. AmeriSchools Academy complies with the requirement of this law. Questions concerning the law may be addressed to the Section 504/ADA Coordinator at your student's school. In the event there are further questions or concerns, please contact the district office at:

Director of Academic and Student Services
1150 North Country Club Road
Tucson, AZ 85617
1-520-296-1100

Grievance Procedure

Any person who believes she or he has been subjected to discrimination on the basis of disability by a

student, staff member, or third party may file a grievance under this procedure. Examples of disability discrimination can include, but are not limited to, disability-based harassment; limiting or denying a qualified individual with a disability in the enjoyment of any right, privilege, advantage, or opportunity enjoyed by others receiving an aid, benefit or service; treating a student differently on the basis of disability; denying a student with a disability a free and appropriate education; and failing to make modifications of "policies, practices or procedures" when such modification is necessary to accommodate individuals with disabilities.

AmeriSchools Academy prohibits retaliation against anyone who files a grievance or cooperates in the investigation of a grievance.

- Grievances must be submitted to the Section 504/ADA Coordinator within sixty (30) calendar days of the date the person filing the grievance becomes aware of the alleged discriminatory action.

- A complaint should be in writing, containing the name and address of the person filing it. The complaint must state the problem or action alleged to be discriminatory and the remedy or relief sought. If the Complainant is unable to put the complaint in writing, the School shall provide reasonable accommodations to assist the Complainant with submission of his/her complaint. (Note: Please see the attached Complaint form, which may be used to file a complaint in conformance with these procedures).

- The Section 504/ADA Coordinator (or her/his designee) shall conduct an investigation of the complaint. This investigation may be informal, but it must be thorough, affording all interested persons an opportunity to submit evidence relevant to the complaint, including the opportunity to present witnesses. The Section 504/ADA Coordinator will maintain the files and records of the School relating to such grievances.

- The Section 504/ADA Coordinator will issue a written decision on the grievance no later than thirty (30) school days after its filing, unless extenuating circumstances require an extension of the 30-day timeline. In such a case, the Section 504/ADA Coordinator (or her/his designee) will communicate with the Complainant concerning the need for an extension.

- The person filing the grievance may appeal the decision of the Section 504/ADA Coordinator by writing to the School's Executive Director within fifteen (15) calendar days of receiving the Section 504/ADA Coordinator's decision. The Executive Director shall issue a written decision in response to the appeal no later than thirty (30) school days after its filing.

- The School shall maintain confidentiality as required by the Family Educational Rights and Privacy Act (FERPA).

- The availability and use of this grievance procedure does not prevent a person from filing a complaint of discrimination on the basis of disability with the U. S. Department of Education, Office for Civil Rights.

The School will make appropriate arrangements to ensure that disabled persons are provided other accommodations, if needed, to participate in this grievance process. Such arrangements may include, but are not limited to, providing interpreters for the deaf, providing taped cassettes of material for the blind, providing a scribe for submission of the complaint, or assuring a barrier-free location for the proceedings.

The Section 504/ADA Coordinator will be responsible for making such arrangements.

Service Animals

Service animal means any dog or miniature horse that is individually trained to do work or perform tasks for the benefit of an individual with a disability, including a physical, sensory, psychiatric, intellectual or other mental disability. Service animal does not include other species of animals, whether wild or domestic or trained or untrained.

AmeriSchools Academy does not discriminate against individuals with disabilities who use service animals if the work or tasks performed by the service animal are directly related to the individual's disability. Work or tasks include assisting individuals who are blind or have low vision with navigation and other tasks, alerting individuals who are deaf or hard of hearing to the presence of people or sounds, providing nonviolent protection or rescue work, pulling a wheelchair, assisting an individual during a seizure, alerting individuals to the presence of allergens, retrieving items such as medicine or the telephone, providing physical support and assistance with balance and stability to individuals with mobility disabilities and helping individuals with psychiatric and neurological disabilities by preventing or interrupting impulsive or destructive behaviors. The crime deterrent effects of an animal's presence and the provision of emotional support, well-being, comfort or companionship do not constitute work or tasks.

Individuals with disabilities shall be permitted to be accompanied by their service animal in all areas of the School's facilities where members of the public, participants in services, programs or activities, or invitees are allowed to go. A service animal may be excluded from the School if one or more of the following apply:

- The animal poses a direct threat to the health or safety of others.
- The animal fundamentally alters the nature of the School, services or activities provided.
- The animal poses an undue burden.

A service animal shall be under the control of its handler. A service animal shall have a harness, leash, or other tether, unless either the handler is unable because of a disability to use a harness, leash or other tether or use of the harness, leash or other tether would interfere with the service animals' safe, effective performance of work or tasks, in which case the service animal must be under the handler's control.

The School shall not be responsible for the training, feeding, grooming. The School must approve any person who is authorized by the owner to assist in care and supervision of the service animal while on school property.

A request for an individual with a disability to be accompanied by a service animal must be submitted to the Principal at least three (3) days prior to bringing the service animal to school or to a school function. Forms are available by contacting the School Office.

Service dog requests must provide proof of the following vaccinations: DHLPPC (distemper, hepatitis, leptospirosis, paroinfluenza, parvovirus, and coronavirus) bordatella, rabies. Miniature horse requests must provide proof of the following vaccinations: Equine Infectious Anemia (Coggins Test), rabies, tetanus, encephalomyelitis, rhinoneumonitis, influenza, and strangles.

All service animals must be: spayed or neutered; treated for and kept free of fleas and ticks; and kept groomed to avoid shedding and dander. Owners of the service animal are liable for any harm or injury

caused by the animal to students, staff, visitors, and/or property.

Special Education Services

AmeriSchools Academy makes available special education and related services to all eligible students. Our teachers are trained to teach to diverse learning styles and ability levels. AmeriSchools Academy believes in close collaboration between staff, general education teachers, special education teachers, and parents. For more information about our special education programs, please contact the Principal.

Procedural Safeguards

Parents of a student with a disability (or suspected of having a disability) are entitled to a Procedural Safeguards Notice, which explains the rights of the parent and student to ensure they are protected through the special education process. A copy of the procedural safeguards notice is offered to parents once annually and in specific instances; however, copies are always available by contacting the School Office.

Evaluation

A special education evaluation will be considered whenever the School suspects that the student may have a disability. Before the evaluation can be conducted, informed parental consent is required. AmeriSchools Academy may contract with private specialists to provide needed services for students requiring related services. Services include but are not limited to school psychologist, speech therapy, and occupational therapy. Results from the evaluation will then be shared with the Multidisciplinary Evaluation Team (MET), which consists of the student's parents, principal, classroom teacher, school psychologist, special education teacher, and any other needed personnel (i.e., speech therapist, occupational therapist, etc.). The results of the evaluation determine a student's eligibility for special education services, but do not automatically qualify a student for these services. The IDEA sets out the rules and regulations regarding eligibility and the determination of whether a student qualifies for special education services. By law, AmeriSchools Academy must follow these rules and regulations.

Individualized Education Plan (IEP)

If it is determined by the MET that the student qualifies for special education services under the definition and guidelines of the IDEA, an Individualized Education Plan (IEP) will be written for the student, setting out specific goals, accommodations, services, and placement. The IEP must be reviewed at least annually or at the request of an IEP team member.

Child Find

In compliance with the Individuals with Disabilities Education Act (IDEA) and Section 504 of the Rehabilitation Act, the School is required to provide a free and appropriate public education (FAPE) for all students who enroll in the School. All new students will be screened within 45 calendar days of their initial enrollment. The classroom teacher will complete the screening after reviewing the student's abilities in the areas of vision and hearing; cognitive or academic; communication; motor; social or behavioral; and adaptive development. If any concerns are noted, the student will be referred for additional help.

Amerischools will ensure that all children with disabilities within the population of the School who are in need of special education and related services are identified, located and evaluated. Child find must also include children who are suspected of being a child with a disability and in need of special education services, including children who are advancing from grade to grade and highly mobile children, including migrant children.

Amerischools will maintain a record of children who are receiving special education and related services.

Amerischools shall establish, implement and disseminate written procedures for the identification and referral of all children with disabilities, birth through 21 years. All school-based staff will be required to review the written procedures related to child identification and referral on an annual basis, and maintain documentation of the staff review.

Identification (screening for possible disabilities) shall be completed within 45 calendar days after:

- Entry of each preschool or kindergarten student.
- Any student enrolling without appropriate records or screening, evaluation, and progress in school.
- Parent notification of developmental or educational concerns.

Screening procedures shall include vision and hearing status and consideration of the following areas :

- Cognitive or academic;
- Communication;
- Motor;
- Social or behavioral; and
- Adaptive development.

For a student transferring into the School, Amerischools shall review enrollment data and educational performance in the prior school. If there is a history of special education for a student not currently eligible for special education or an indication of inadequate progress, the name of the student shall be submitted to the administrator for consideration of the need for a referral for a full and individual evaluation or other services.

If a concern about a student is identified through screening procedures or review of records, the parents of the student shall be notified of the concern within 10 school days and informed of the School's procedures to follow-up on the student's needs. Amerischools shall maintain documentation of the identification procedures utilized, the dates of entry into school, notification by parents of a concern and the dates of screening. The dates shall be maintained in the student's permanent records.

If the screening indicates a possible disability, the name of the student shall be submitted to the administrator for consideration of the need for a referral for a full and individual evaluation or other services. A parent or a student may request an evaluation of the student. If, after consultation with the parent, Amerischools determines that a full and individual evaluation is not warranted, Amerischools shall provide prior written notice and procedural safeguards notice to the parent in a timely manner.

Health/Medical Policy

Health screenings are provided annually in order to identify students with health problems such as vision or hearing deficits that may now, or in the future, affect their education. Parents/Guardians are requested to notify the office if a student has a health problem. School personnel make every effort to comply with physicians' recommendations.

School officials deal with illnesses and accidents that occur at school. We cannot keep an ill child in school. Our main interest is the health and safety of all students in our school. In order to protect students that are more susceptible to secondary illnesses and protect other students from possible communicable diseases, please keep your student home when he/she is ill.

Any student with a temperature of 100 degrees Fahrenheit or more may not attend school. If sent home

from school with a fever, children may not return to school until they are without fever and without fever-reducing medicine for twenty-four hours. Parents/Guardians are requested to keep students home if the following symptoms are present: nausea and vomiting, elevated temperature, yellow or green nasal discharge, red or inflamed eyes, cold symptoms, any skin rash unless it has been diagnosed by a physician as non-infectious, severe headache, or other pain. State law requires that students be excluded from school if they are suspected of having a communicable disease.

Health Screening Programs

- *Hearing:* We follow the guidelines recommended by the Arizona Department of Health Hearing Conservation program. Hearing tests are given to students at specified grade levels.

- *Vision:* We follow the guidelines of the Arizona Department of Health Services Vision program. Vision tests are given to pupils at specified grade levels.

- *Lice Checks:* Lice are commonly transmitted in children when they share combs, brushes, hats, and coats. Lice crawl slowly; they do not hop or fly. They will die if they fall off of the human body. Lice checks are performed on students when the parent or teacher suspects the child has lice, or if classmates and/or siblings of any student have lice. If a child is found to have head lice, the parent/guardian will be notified immediately by telephone to take their child home. The child will need to be treated, and the parent/guardian must remove all of the eggs (nits) from the hair shafts before the student may return to school. The child must check in with school officials before re-entering school the next day. If there is an epidemic of lice in a classroom, the parents/guardians of every student in the classroom (whether they have lice or not) will be notified by a letter. Parents/guardians are invited to call the front office to ask for assistance if needed.

- *Pink Eye:* Pink eye (conjunctivitis) is an eye infection with symptoms of red, swollen, runny and/or sticky eyelids, especially in the morning. Bacteria or a virus can cause pink eye that is easily spread from person to person by contact with discharge from the infected person's eyes. When it is necessary to send a child home because of pink eye symptoms, we encourage the parent to call their doctor and report the symptoms. If medication is prescribed, the child can return to school after using the medication for 24 hours.

Emergency Contact

Parents/Guardians must make arrangements to have either a parent, neighbor, or other responsible person available at all times to pick up a child who is ill. It is very important that parents/guardians inform the school immediately of any phone number or address changes**.** School officials may contact the Department of Child Safety or local law enforcement if a child is not picked up within two hours of the parent/guardian being contacted.

Emergency Form

Parents/Guardians are required to complete an emergency medical referral form for each of their children every year to inform he School of how to contact you or another responsible adult if your child becomes ill or is injured at school. Parents/Guardians are expected to notify school officials regarding students' health problems including allergies to foods, medicine, insect stings, etc. It is important to notify the office of your address, home phone number business phone or emergency phone number changes during the school year.

Immunizations
School officials maintain health records on each student. An immunization record for school attendance must be completed, current, and on-file before a student can be enrolled. Arizona law (A.R.S. § 15-872) requires that the parent/guardian, prior to school attendance, furnish a complete, up-to-date immunization record. Every parent/guardian must furnish the month and year of the child's immunizations and sign an immunization history form. The immunization requirements for a child entering AmeriSchools Academy are:

- Rubeola (measles)
- Rubella (German measles)
- Poliomyelitis (polio)
- Tetanus
- Pertussis
- Mumps
- Diphtheria
- Hepatitis B (3 doses for all students)
- Varicella or history of chicken pox
- Meningococcal (age 11 years or older)

Arizona law does provide exemptions from immunization requirements for the following:

- Medical reasons
- Personal or religious beliefs

Although the law allows exemptions, the County Health Department may require the school to exclude a student from school in the case of an outbreak of any of the diseases covered by the immunization requirements. The student will be notified when he or she may return to school.

Medication
School officials administer prescription medication in the school setting in accordance with specific regulations that come from state law. All medications must be brought to the school office by an adult and picked up from the school office by an adult. Only medications, which are needed to treat an existing ailment, are stored in a secured (locked) medicine cabinet in the school office. All medications not picked up by the end of the school year or by the date of expiration will be disposed of by school officials.

Medication to be given two (2) and/or three (3) times daily are to be given at home, unless specifically ordered by the doctor to be given at school.

For prescription medication, there must be a written order from the physician stating the name of the medication, the dosage and the time it is to be administered and that it must be administered during school hours. There must be written permission from the parent/guardian for the medication to be administered at school. The medication must be in the original prescription container labeled by the pharmacist. Pharmacies will provide a duplicate container for school use upon request. No medications in envelopes, foil, or baggies will be accepted.

Pursuant to A.R.S. §§ 15-341(A)(35),(36), students who have been diagnosed with anaphylaxis and/or breathing disorders may carry and self-administer emergency medications while at school and at school-sponsored activities. The student's name must be on the medication container and annual written

documentation, which authorizes the possession and self-administration of the medication from the student's parent, is required.

Restricted Physical Education Activities
If for any reason you feel your child should have restricted physical education activities, please provide the office manager with a doctor's statement giving the reason and the length of the restriction. This information will be forwarded to the classroom teacher.

Diabetes Policy

In accordance with Arizona Revised Statute 15-344.01, the management of students with diabetes in the classroom, on School grounds and at school-sponsored activities shall be in compliance with this policy. Students attending AmeriSchools Academy with diabetes shall have a Diabetes Medical Management Plan (DMMP) on file with the School and the DMMP shall be updated and submitted annually.

The DMMP shall:

- Be provided by the Parent or Guardian on an annual basis;
- Be signed by the appropriately licensed health professional, nurse practitioner or pharmacist who is licensed pursuant to A.R.S. Title 32, chapter 18 and who is practicing pursuant to A.R.S. 32-1970;
- Authorize the student to carry appropriate medications and monitoring equipment;
- Acknowledge that the student is capable of self-administering medications and equipment;
- Specify a method to dispose of equipment and medications in a manner agreed on by the parent or guardian and the School; and
- List the medications, monitoring equipment, and nutritional needs that are medically appropriate for the student to self-administer and that have been prescribed or authorized for the student.

Student Self-Administration of Medication
Students are to take extraordinary precautions to ensure that any medication or equipment is secure and shall never make the medication and/or equipment available to another student. The student shall immediately report to School Administration any theft or loss of the medication and/or equipment brought to the School. Violation of these procedures may subject the student to disciplinary action. Students are required to practice proper safety precautions for the handling and disposal of the equipment and medications authorized under the DMMP.
Medication must come in the prescription container as provided by the physician and/or pharmacy. If a student fails to practice proper safety precautions, the School may withdraw student's authorization to self-monitor blood glucose and/or diabetes medication and develop a plan for administration by a designated staff member.

School Administration of Medication
If a student is not capable of self-monitoring blood glucose and/or self-administering medications, any medication administration services specified in the student's DMMP shall be provided by the School.

Two or more staff members shall be identified as designated staff members for the purposes of the administration of diabetic medications including storing, supervising ingestion, and recording.

School employees shall not be subject to any penalty or disciplinary action for refusing to serve as a designated staff member. Designated staff members shall receive training by an appropriately licensed

health professional as to the implementation of a student's DMMP. AmeriSchools Academy, its employees and members of its governing body, are immune from civil liability with respect to actions taken to adopt this Policy and all decisions made and actions taken that are based on good faith compliance with this Policy.

School Facilities

Building Regulations

Students may not be in any of the school buildings or on the playground unless supervised by a staff member. Students should arrive at school no earlier than the beginning of class time, unless participating in before care and depart by dismissal, unless they are staying for an after-school program or after school care. Any students staying after dismissal may result in a late pick up fee per child.

Use of Restrooms

Students are expected to obtain a pass from the teacher to use the restrooms. A student who is feeling ill should report to the school office and not remain in the restroom.

Damage to School Property

We are a publicly funded entity and all materials are paid for through tax payer funds, grants, and donations. This includes textbooks, furniture, walls, and everything else in the school building. *Students that do not take care of books, textbooks, supplies, materials, or the school building will have their parents/guardians billed to pay for lost or broken items*.

Bicycles, Skateboards, Roller Skates, Roller Blades

Students are allowed to ride bicycles to school. We strongly suggest that the bike have a lock to prevent theft. Students may not use skateboards, roller skates, roller blades or roller shoes as a means of transportation to or from school. Skateboards, roller skates, roller blades, roller shoes, and shoes with wheels are not allowed anywhere on campus at any time.

School Security – Audio/Video Recording

To help keep our students and our staff safe regarding school security, surveillance cameras that record audio and video may be installed in various school locations. This includes common areas as well as classrooms both inside and outside of the buildings. Cameras will not be used in areas where a reasonable expectation of privacy exists.

The school complies with all requirements regarding student privacy and the Family Educational Rights and Privacy Act (or FERPA). Video or audio recordings may also be used in in accordance with investigations as well as evidence in any student disciplinary action and may become a part of a student's education record. Recordings related to illegal activities will be provided to any appropriate law enforcement authority as required by law. Video and audio recordings will be kept for a limited period of time.

Fire Drills

Fire and other emergency drills are held on a periodic basis to teach students the safest, quickest route from the school buildings. All staff, visitors and volunteers must comply with the following procedures during fire drills and/or any real emergency on campus that requires the School to be evacuated:

- Everyone must respond immediately to the fire alarm.
- All electrical equipment must be turned off before exiting a room.

- All doors must be closed but not locked.
- Exit quietly in a single file line.
- Use either the primary or secondary exit.
- Proceed to assigned area where attendance will be taken and absences reported to a school administrator.
- Students should turn away from the building and remain quiet to listen for further directions.
- No one may return to the building until an "all clear" signal is given.

Lockdown/Campus Emergency
In the event of an emergency requiring the need to secure the campus, such as in the case of a lock- down, the School will adhere to guidelines in accordance with the State of Arizona and local law enforcement and fire departments. In the event that an emergency necessitates students to be picked-up from campus, the following procedures will apply:

- Students and staff members remain in the designated area until the Principal and/or authorized personnel determine it is safe to release the students.

- Drivers are to park in the School parking lot and shall not block entrances and/or exits to the School.

- As parents arrive to pick-up students, they shall report to the School Office. Parents are not to report to classrooms. Parents are required to sign-out their students and wait in the designated area until students are escorted by authorized personnel to the School Office. Students will only be released to parents or people on the student's emergency card. Students who are not picked- up will remain in the classroom with the teacher while the school attempts to contact their parent/guardian.

Student Records and Confidentiality

(Annual Notification of Confidentiality Rights Regarding Education Records of Students with Disabilities and Their Parents)

AmeriSchools Academy has established written policies regarding the collection, storage, retrieval, use and transfer of student educational information collected and maintained pertinent to the education of all students to ensure the confidentiality of the information and to guarantee parents'/guardians' and students' rights to privacy. These policies and procedures are in compliance with federal and state laws.

The Family Education Rights and Privacy Act (FERPA) affords families and majority age students rights to their education records. These rights are as follows:

1. Right to Inspect and Review
   Parents have the right to inspect and review a student's education records within 45 days from the day the school receives a request for access. Requests should be submitted in writing to the Principal and clarify the records to be inspected and/or reviewed.

2. Right to Amend Education Records
   Parent may request to have their student's educational records amended if they believe the information is inaccurate or misleading or otherwise in violation of the student's privacy rights.

The request should be made in writing to the Principal, clearly identifying the part of the record the parent(s) want changed and specifying why it is inaccurate or misleading. If the School decides not to amend the record as requested, the parent(s) will be notified of their right to a hearing regarding the request for amendment.

Additional information regarding the hearing procedure will be provided to the parent(s) when notified of the right to a hearing. After the hearing, if the School still decides not to amend the record, the parent or eligible student has the right to place a statement with the record setting forth his or her view regarding the contested information.

3. Right to Consent to Disclosure
   Parent(s) or eligible students have the right to require their consent to disclosure of personally identifiable information contained in the student's education records by the prior written consent of the parent(s) or eligible student(s), except to the extent that FERPA authorizes disclosure without consent.

4. Right to File a Complaint
   A parent or eligible student has the right to file a complaint with the Family Educational Rights and Privacy Act Office in Washington D.C., if they believe that the district has violated the provision of FERPA. If a family or majority age student wishes to file a complaint alleging a FERPA violation, he or she should first contact the Principal. If a reasonable solution is not made at the school level the complainant has the right to file a complaint with the U.S. Department of Education. The name and address of the office that administers FERPA is:

   Student Privacy Policy Office
   U.S. Department of Education
   400 Maryland Avenue, SW
   Washington, D.C. 20202

Directory Information

A school may designate information in education records as "directory information" and may disclose it without parent consent, unless the parent/guardian notifies the School of their decision to "opt-out." The school may disclose appropriately designated "directory information" without written consent, unless the parent/guardian notifies the School of their decision to "opt-out." The primary purpose of directory information is to allow the School to include this type of information from your child's education records in certain school publications. Examples include:

- A playbill, showing your student's role in a drama production;
- The annual yearbook;
- Honor roll or other recognition lists;
- Graduation programs; and
- Sports activity sheets, such as for wrestling, showing weight and height of team members.

Directory information, which is information that is generally not considered harmful or an invasion of privacy if released, can also be disclosed to outside organizations without a parent's prior written consent. Outside organizations include, but are not limited to, companies that manufacture class rings or publish yearbooks. *If you do not want the School to disclose directory information from your child's education records without your prior written consent, you must notify the School, in writing at the time of your Student's enrollment.*

AmeriSchools Academy has designated the following information as directory information:

- Student's name
- Participation in officially recognized activities/sports
- Telephone listing
- Electronic mail address
- Photograph
- Degrees, honors, and awards

Notice of these rights is available, upon request, on audiotape, in Braille, and in languages other than English. You may contact the Arizona Department of Education at (602) 542-3111.

English Language Learners

Arizona law requires that children with a home language other than English be assessed using the Arizona English Language Learner Assessment (AZELLA) for proficiency in oral language, reading comprehension, and written communication. Following parent/guardian notification, students who are identified as limited English proficient may receive various forms of instructional support focused on English acquisition. AmeriSchools Academy offers an English Language Learning Program to serve students who need assistance in learning English. Full inclusion of English Language Learners is practiced.

Homeless Education Policy

This policy is intended to be in direct compliance with the Arizona Revised Statutes, Arizona Administrative Code and McKinney-Vento Homeless Education Assistance Improvements Act of 2001 (the Act) and should be read as consistent with those documents.

The McKinney-Vento Homeless Assistance Act requires that children and youth experiencing homelessness have equal access to the same free, appropriate public education, including a public preschool education, as provided to other children and youth.

Definitions

The term "homeless students" means individuals who lack a fixed, regular, and adequate nighttime residence and includes:

- Students who are sharing the housing of other persons due to loss of housing, economic hardship or a similar reason; are living in motels, hotels, trailer parks, or camping grounds due to the lack of alternative adequate accommodations; are living in emergency or transitional shelters; are abandoned in hospitals; or are awaiting foster care placement.
- Students who have a primary nighttime residence that is a public or private place not designed for or ordinarily used as a regular sleeping accommodation for human beings.
- Students who are living in cars, parks, public spaces, abandoned buildings, substandard housing, bus or train stations, or similar settings.
- Migratory students who qualify as homeless because the children are living in circumstances described above.
- The term "unaccompanied youth" includes a youth who is not in the physical custody of a parent or legal guardian.

**Per Title IX, Part A of the Every Student Succeeds Act, "awaiting foster care placement" was removed from the definition of homeless on December 10, 2016. This policy does not apply to children awaiting or in foster care.

Enrollment
School selection is determined by the best interest of the child, although school of origin is preferred whenever possible, any barriers to attending school will be addressed as needed to ensure the student receives the education they are entitled to by law.

Before enrollment, it shall be determined that the student first meets the definition of a homeless student under the Act. The Act guarantees a child qualified as homeless the right to attend one of two schools:

1. The school of origin, defined as the school that the child last attended before experiencing homelessness or the school where the student was last enrolled; or
2. The school of residency, defined as the neighborhood school identified by the attendance area in which the student is currently residing.

As a charter school, AmeriSchools Academy has the obligation to enroll homeless students as a "school of origin." Therefore, homeless students for whom the last school of attendance or enrollment was AmeriSchools Academy will be immediately enrolled. When AmeriSchools Academy is the school of origin, the School will keep students in homeless situations to the extent feasible, unless it is against the parent/guardian wishes. Students will be allowed to stay in the School the entire time that they are homeless and until the end of the academic year in which they move into permanent housing. All other homeless students will be referred to their school of residency or their last school of origin for enrollment, unless it is against the parent/guardian wishes.

McKinney-Vento Liaison
The District McKinney-Vento Liaison Tammie Rohr and the local designee at each school site will serve as the liaison for homeless students and will carry out pertinent duties. Such duties include:

- Identifying homeless children and youths as identified by school personnel and through coordination activities with other entities and agencies.
- Ensuring that homeless children and youths are enrolled in school and have a full and equal opportunity to succeed.
- Ensuring that homeless families, children, and youths receive educational services for which they are eligible including referrals to health care services, dental services, and mental health services.
- Ensuring that the parents or guardians of homeless children and youths are informed of the educational and related opportunities available to their children and are provided with meaningful opportunities to participate in the education of their children.
- Disseminating public notice of the educational rights of homeless children and youths.
- Mediating enrollment disputes.
- Informing the parent or guardian of a homeless child or youth of all transportation services to the school and assisting with providing these services.
- Reporting to the State Coordinator for Homeless Education necessary information to assess the educational needs of homeless children and youths at Amerischools.

Custody

In most cases, natural parents shall be given reasonable access to their children at school and to their children's educational records. Exceptions to this will be made in cases where there are court orders restricting the rights of a parent to access a child and/or the child's educational records. It shall be the responsibility of the natural parent who has a court order restricting the rights of the other (non- custodial) parent to a child or the child's educational records to notify school officials of the conditions of the court

order and to provide school officials with a current copy of the court order.

In cases in which a person other than the natural parent has been granted guardianship, the rights and privileges of the natural parent shall be considered divested, in the absence of court action granting the natural parents specific rights. In cases of guardianship, the legal guardian shall be responsible for notifying school officials of the conditions of the guardianship and for providing school officials with all pertinent written documentation or changes.

Reporting Child Abuse

Child abuse is something that will not be ignored at AmeriSchools Academy. According to AZ State law (A.R.S. § 13-3620), school personnel, including Amerischools Governing Body members, substitutes and contracted staff, are mandated to report suspected child abuse and/or neglect to the Department of Child Safety (DCS) in the Department of Economic Services or local law enforcement authorities.

Reports are mandatory when any school personnel, including the Governing Body members, develop the reasonable belief in the course of their employment that a minor is/has been the victim of:

- physical injury
- abuse
- child abuse
- a reportable offense
- neglect

and that appears to have been inflicted on the minor by other than accidental means or that is not explained by the available medical history as being accidental in nature. If a student is identified as a potential victim of a reportable offense, he/she may be interviewed only as provided by the adopted local county protocol.

Policy Regarding Reporting Suspected Crimes or Incidents

Amerischools personnel are required to report any suspected crime against a person or property that is a serious offense, as defined in A.R.S. section 13-706, or that involves a deadly weapon or dangerous instrument or serious physical injury, and any conduct that poses a threat of death or serious physical injury to an employee, student or other person on the school property.

All such reports shall be documented and communicated to the Executive Director who shall be responsible for reporting to local law enforcement. Conduct that is considered to be bullying, harassment or intimidation shall be addressed according to separate School policy. The School is to notify the parent or guardian of each student who is involved in a suspected crime or any conduct that is described above, subject to the requirements of federal law and maintaining student confidentiality when necessary.
A person who violates the reporting requirements may be disciplined for violating this policy and may be subject to dismissal. The School Governing Body shall enforce the policies and procedures that require the School to maintain a record on any person who is disciplined pursuant to this Policy and, on request, shall make that record available to any public school, school district governing board or charter school governing body that is considering hiring that person.

Technology Use Agreement

AmeriSchools Academy believes that electronic information research skills are fundamental to the preparation of students for higher education, employment, and life. Telecommunications access to electronic information enables students to explore thousands of libraries, databases, and bulletin boards.

It allows students to exchange information and ideas with people throughout the world. Students have the privilege to use computer workstations, and the Internet for educational purposes in technology skills, information gathering skills, and communication skills.

Technology resources covered by this policy include commercial, governmental, and private telecommunications-accessible networks (such as the internet), local networks, data bases, and any computer-accessible source of communication or information, whether from or to file servers, hard drives, tapes, compact disks, floppy disks, or other electronic storage or retrieval means.

AmeriSchools Academy supports access by students to information resources offered by the Internet and other technology resources. At the same time, the school recognizes the potential for abuse by students, exploitation of students, and damage to both the school's computer equipment and records. AmeriSchools Academy also recognizes the school's responsibility to provide education in certain basic skills, and that technology resources should be employed in a grade-appropriate manner that may preclude or limit access by some students.

Please note that violation of this policy may result in the loss of any technology privileges at AmeriSchools Academy. Serious violations may lead to suspension or expulsion depending on the severity of the situation. Any serious damage to a technology item will result in the parents/guardians of the students paying to replace the item.

Use of Equipment and Hardware

- I will not use the equipment in a way that disrupts or interrupts the work of others. This includes printing, or not using headphones for sound.
- I will not deliberately print or waste printer ink.
- I will not deliberately damage or alter any school hardware or software in any way.
- I will not modify the setup of any school computer without permission.
- I will not illegally install copyrighted software on any school computer.

Ethical Use of Technology

- I will not use school computers to view, download, or transmit any material that is offensive or inappropriate, including but not limited to material that is racist, sexist, sexually explicit, demeaning, illegal, or objectionable in some other way. I will not send, view or post material that contains pornography, violence, homophobia, hate, racism, sexism, alcohol, nicotine, or other drugs.
- I will not use the school's network or computers to send hate mail, to harass others, to make discriminatory remarks, or to behave in any antisocial manner. I will not use the school's network or computers to develop programs that harass other users, infiltrate a computer system, or damage software or data on a computer system. I will not send unwanted or harassing email.
- I will not gamble on school computers.
- I will not share my password with anyone or permit anyone else to access school computers with my account.
- I will not attempt to access files or data belonging to others, attempt to gain other user's passwords, or misrepresent other users on the network.
- I will not attempt to gain unauthorized access to any school system, school organization, or outside institution.
- I will not attempt to access any Internet site, program, or service that is blocked by the firewall or

content filter by any means.

- I will not violate copyrights in my class work. I will list all resources used in my project(s) with a works cited or bibliography section. If work or information is protected by copyright, I will not use it unless I ask and receive permission from the owner.

General

- I understand that the school's computer resources are to support the educational process and to facilitate the running of the school. Therefore, I will not use the school's computers or networks for commercial purposes or for excessive personal use.
- I will not publish the full name, address, or any personal information of any person (including myself) on the Internet.
- AmeriSchools Academy may use picture, video, or schoolwork on its website.
- I understand that AmeriSchools Academy may filter Internet content in any way it deems appropriate, and that it may monitor my use of technology resources including files on disks and Internet use.
- I understand that I should not be using social media websites such as Facebook, YouTube, Twitter, etc., nor will I shop, purchase or peruse websites for my personal enjoyment (e.g. buying clothes, listening to music, etc.)
- I understand that netbooks, Neo's, laptops, Interactive White Boards, and lab computers are very expensive equipment and should be handled with care. I will have to pay to replace the item if broken.
- AmeriSchools Academy cannot be held liable for incorrect or improper information from the Internet. The school cannot be responsible if data or information is lost due to a service interruption.

Failure to comply with the Code of Conduct for Computer Use may result in loss of computer privileges as well as other penalties. Students observing or knowing any violation of these guidelines or of a security problem on the School's network/internet must notify a teacher or the Principal.

PARENT/STUDENT ACKNOWLEDGEMENT FORM

- I/my student have received a copy of the AmeriSchools Academy Parent and Student Handbook for the current academic year or I/my student am able to access it electronically on the School's website.

- I/my student agree to comply with the Policies as outlined in the Handbook, and all policies mandated by AmeriSchools Academy.

- As a parent of an enrolled student, I have reviewed the school calendar and noted special events. I understand the importance of consistent daily attendance for my student, and I will use the calendar as a reference when planning appointments and/or vacations during the school year.

- I/my student have reviewed and understand the Behavior Standards and Expectations, and the consequences for violating the standards and expectations.

- I/my student have reviewed the Technology Usage Agreement and I/my student agree to abide by the policy and understand that should my student commit any violations, his/her access to privileges may be revoked and school disciplinary and/or appropriate legal action may be taken.

DISCLAIMER: The Parent and Student Handbook provides you with important information about the AmeriSchools Academy community. It also serves as a reference for looking up critical policies and procedures that will affect you and your child during your time at AmeriSchools Academy. These policies, procedures, and benefits as described in the Handbook do not constitute a contract or implied contract with students or personnel. AmeriSchools Academy reserves the right to interpret, revise, amend, or withdraw them at its discretion.

Student Printed Name: _____

Student Signature: _____

Parent/Guardian Printed Name:_____

Parent/Guardian Signature: _____

Date signed: _____

APPENDIX

Student Concerns, Complaints and Grievances Form

Please print:

Name: _____

Date: _____

Address: _____

Telephone: _____ Alt. Phone: _____

E-mail Address: _____

I wish to complain against:

Name of person, school (department), program, or activity: _____

_____

_____

_____

Specify your complaint by stating the problem as you see it. Describe the incident, the participants, the background to the incident, and any attempts you have made to solve the problem. Be sure to note relevant dates, times, and places. *Additional pages may be attached if more space is needed.*

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

Date the alleged action of complaint occurred: _____.

If there is anyone who could provide more information regarding this, please list name(s), address(es), and telephone number(s):

_____
_____
_____

The Projected Solution
Indicate what you think can and should be done to solve the problem. Be as specific as possible:

_____
_____
_____
_____

I certify that this information is true and correct to the best of my knowledge.

_____ _____
Signature of Complainant Date Signed

_____ _____
Signature of Administrator or staff member Date received